Non-residential Development



6 Non-residential Development

6.1 All non-residential

6.1.1 General Controls

Objective		Control	
General Provisions			
O1.	To provide guidelines for non-residential development throughout the LGA.	**C1.**	A street number for the property is to be clearly identifiable from the street.
		C2.	Air conditioners must not be installed on street awnings or the front façade of buildings.
		C3.	Maintain limited advertisements and business signage to minimise visual impact.
		C4.	Restrict signage to the awning fascia, under the awning, or behind the show window at street level.
		C5.	Buildings must address the street and their entries must be readily apparent from the street.
		C6.	Awnings must be provided above the footpath continuously and at the same height to provide weather protection for pedestrians.
		C7.	No less than 10% of the development site shall be landscaped on all non-residential development sites. On sites over 2,000sqm, the front landscaped setbacks are additional to the 10% requirement. The majority of landscaping shall front the street's to which the development has a frontage and include side and rear landscaped areas. **Note:** Landscaping setbacks are to be free from overhangs, hard elements such as paths, ramps, substations, fire hydrant boosters, signs, parking (both above ground and underground) and advertising structures (including pole signs). This quantity of landscaping may be used in calculating 10% landscaped area on sites with an area below 2,000m².
		C8.	Existing trees, including Council street trees and trees on neighbouring properties, are to be retained and adequate provision allowed for the protection of their primary root zone and canopy when locating new buildings,

Objective		Control	
			driveways and parking areas (refer to **Part 3.8 - Tree Management**).
		C9.	Canopy trees strongly influence the impacts of a development on the streetscape. They should be planted liberally throughout developments and with a contiguous, even distribution to reduce the scale and bulk of buildings, unify buildings with the landscape and open spaces, enhance the streetscape and provide shade and canopy cover over the site. Minimum tree size is 100 litre. Tree selection shall be in scale with building heights and shall be strategically located, for example, to soften the ends and corners of buildings.

6.1.2 Fences

Objective		Control	
General Provisions			
O1.	To provide guidelines for fencing of developments.	**C1.**	Sandstone fences and walls that are determined by Council to be significant and/or to represent important character elements for a locality are to be retained and if necessary repaired. Any modifications to existing stone fencing and walling are to utilise the same materials and construction technique.
		C2.	New fences and walls are to be constructed of robust and durable materials which reduce the possibility of graffiti.
		C3.	Fences should not be constructed in floodways. Where this is unavoidable fences are to be of open construction that will not restrict the flow of floodwaters.
		C4.	Gates must not encroach over the street alignment when opening or closing.
		C5.	Sheet metal fencing is not permitted forward of the building line.
Employment Zones			
O2.	To ensure fences complement and conserve the visual character of the street and neighbourhood.	**C6.**	Fences are to be located behind the street frontage landscaped area or incorporated within the landscaped setback. All fencing along the street frontage is required to be permeable metal palisade or picket powder coated in a suitable colour, dark colours are

Objective		Control	
			preferable. Maximum height forward of the building line is 1.8 metres on street frontages.
		C7.	Chain wire is permitted only on the side and rear boundaries with commercial or industrial developments, commencing at the front building alignment - not the front boundary. All chain wire fencing is required to be black PVC coated.
		C8.	If the side or rear boundary faces a side or rear boundary of a residential premises, a timber paling/colourbond fence (commencing at the front building alignment) is allowed.
		C9.	Council may require that any fencing be replaced in any development if it is in a dilapidated condition.
		C10.	Masonry retaining walls along the frontage are restricted to 600mm in height.
		C11.	Solid metal panel fences of any height are not permitted along the street frontage or in front of the building alignment.
		C12.	Access gates shall be hung so that the direction of swing is inward.
		C13.	Fences adjacent to access driveway / vehicular crossings are to be designed and constructed to ensure adequate sight distances can be maintained in accordance with the requirements of AS2890.1 and AS2890.2.

6.2 Retail Premises

6.2.1 Outdoor Dining

This Part guides applicants seeking approval to utilise footpath areas outside their café or restaurant for footpath seating, as well as developments that include outdoor courtyards.

Subject to the provisions of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008, the use of a footway or public open space for outdoor dining associated with a lawful food and drink premises is exempt development in many cases. In other cases, a permit from Council is required for either development consent and/or Roads Act.

This section outlines the information needed to be provided to Council where an approval or permit may be required for outdoor dining.

Objective		Control	
General			
O1.	To ensure outdoor dining areas are ancillary to a food and drink premises or a shop.	**C1.**	Outdoor dining areas will only be permitted in conjunction with a new or an existing food and drink premises or shop for which consent has been granted.
		C2.	Outdoor dining areas must be located directly adjacent to the associated food and drink premises or shop.
		C3.	Outdoor dining areas do not extend in front of neighbouring properties.
Plan of Management			
O2.	To ensure the continued appropriate operation of the outdoor dining area.	**C4.**	A Plan of Management is to be submitted with a development application for an outdoor dining area that demonstrates how the provisions of this sub-topic are to be satisfied during the operation of the use.
Location			
O3.	To maintain the primary role of footpaths as providing for the convenient, comfortable, legible and safe movement of pedestrians.	**C5.**	Outdoor dining areas maintain an unobstructed pedestrian walkway having a minimum width of 2.0m width. ***Note:*** *This walkway may be provided adjacent to the building or to the kerb.*
O4.	To ensure outdoor dining areas are consistent with the existing streetscape character.	**C6.**	Outdoor dining areas are consistent with the prevailing existing layout of the street, including consideration of adjacent footpath trading activities, public utilities, landscaped areas and open spaces.
O5.	To ensure the safety and comfort of outdoor dining area patrons.	**C7.**	Outdoor dining areas are to be located as far away as practicable from arterial roads or roads with fast moving traffic in order to ensure amenity and safety.
Clearance			
O6.	To ensure outdoor dining areas do not interfere with access to infrastructure.	**O8.**	Outdoor dining areas do not interfere with access to public transport.
O7.	To ensure outdoor dining areas do not interfere with access to road functions.	**C9.**	The minimum distance from an outdoor dining area to the following infrastructure is 1.2m: a. Bicycle hoops, bus shelter, parking meter, payphone, public bin, tree or tree plot, communication pole, fire equipment store, fire exit doors, fire hydrants, hose reel cupboards, substations
		C10.	The minimum distance from an outdoor dining area to the following infrastructure is 0.5m: a. Bollards, poles and other similar objects

Objective		Control	
		C11.	The minimum distance from a kerb is as follows: a. Standard parking conditions: 0.8m b. Loading zones: 0.9m c. No stopping areas: 1.0m d. Disabled parking: 1.5m e. Bus stops: 1.5m **Note:** Council reserves the right to vary clearances depending on pedestrian and vehicular movement, the width of existing footpaths and concerns from other users.
Layout			
O8.	The number of chairs and tables, capacity and layout is appropriate to the areas and dimensions of the outdoor dining area.	**C12.**	Outdoor dining area enable patrons and staff room to move between furniture comfortably.
		C13.	All furniture and equipment must be located within the approved area at all times, as shown on the furniture layout plan submitted with the Development Application.
		C14.	The maximum diameter of a table irrespective of shape is 0.7m.
		C15.	The maximum length and width of a single table and chairs is as follows: a. 2 chairs: 1m x 2m x 1m b. 3 chairs: 1.5m x 2m c. 4 chairs: 2m x 2m
Accessibility			
O9.	To ensure the safety of patrons and other premises.	**C16.**	Outdoor dining areas must not compromise patrons and emergency personnel.
O10.	To maintain the quality of existing paving.	**C17.**	The pavement must be capable of supporting outdoor dining in terms of not being damaged.
Sightlines			
O12.	To ensure a clear connection between the outdoor dining area and the premises.	**C18.**	Clear sight lines are provided between the inside of the premises to the outdoor dining area.
O13.	To ensure the safety of pedestrians and drivers.	**C19.**	Outdoor dining areas do not obstruct sight lines of pedestrians and drivers.
Hours of Operation			
O14.	To ensure the outdoor dining area does not cause unreasonable adverse amenity impacts on the surrounding area.	**C20.**	The hours of operation for the outdoor dining area must not exceed the approved hours of the associated food and drink premises. **Note:** Trading hours for outdoor dining area may be restricted if it is located within a predominantly residential context.

Objective		Control	
Facilities			
O15.	To ensure adequate facilities for patrons.	**C21.**	Sufficient toilet facilities and car parking to cater for the number of customers and staff in accordance with this DCP are to be provided.
Durability and Maintenance			
O16.	To ensure the outdoor dining area presents as clean and tidy.	**C22.**	Outdoor dining materials are durable and low maintenance.
Outdoor Dining Signage			
O17.	Signage maintains the safety of pedestrians and other road users.	**C23.**	Any signage, fixed or temporary, is to be located outside of the unencumbered 2m pedestrian zone.
		C24.	Freestanding A-frame style advertisements or 'menu boards' are not permitted.
Noise			
O18.	To ensure the outdoor dining area does not cause unreasonable adverse amenity impacts on the surrounding area by way of noise or lighting.	**C25.**	The Plan of Management is to demonstrate appropriate measures to be taken to minimise noise to adjacent premises.
		C26.	Speakers (located within a food and drink premises) should not be located outside of the premises and must not be positioned toward the street frontage to direct the playing of music towards the outdoor dining areas.
		C27.	Sufficient lighting is to be provided to ensure the safety and comfort of the patrons and pedestrians and must not adversely impact adjoining premises.
Heating Devices			
O19.	Heating devices are to ensure the highest level of safety for patrons and other users of the footpath.	**C28.**	If heating devices are proposed, details of the type, location and design must be submitted as part of the development application.
		C29.	Heating devices are to be located wholly within the proposed outdoor dining area, must comply with relevant authority requirements, and be used in accordance with the manufacturer's instructions (i.e. clearance from other combustible objects).
		C30.	Portable gas heaters are only permitted for well ventilated outdoor dining area.
General Furniture Requirements			
O20.	Furniture is to be safe, durable and make a positive contribution to the character and amenity of the streetscape.	**C31.**	All furniture and equipment must be easily stored within the premises and must not be permanently installed in the outdoor dining area. In the event of an emergency, all furniture and equipment must be easily cleared within 1 hour.

Objective		Control	
		C32.	All furniture and equipment must be stable and properly secured to prevent falling over when knocked by a pedestrian or strong wind.
		C33.	All furniture and equipment are to be strong, durable, waterproof, and weather resistant.
		C34.	Outdoor furniture is to make a positive contribution to the existing character and streetscape and is subject to the approval of the Council.
Umbrella and Shade Structures			
O21.	Umbrellas and shade structures are safe and do not result in visual clutter.	**C35.**	Existing awnings are utilised for weather protection. **Note:** Council may consider the use of removable umbrellas and retractable blinds.
		C36.	All umbrellas and shade structures must be located wholly within the proposed outdoor dining area and must be of the same type and colour.
		C37.	Umbrellas and shade structures must be adequately secured for the locations wind conditions, including consideration of the impact of buildings funnelling wind.
Screens and Barriers			
O22.	Screens and barriers are safe and do not result in visual clutter.	**C38.**	Screens or barriers will be considered on a case by case basis, subject to suitability of location in terms of safety and character, and traffic conditions.
		C39.	Bollards are required if an outdoor dining area is on a Classified Road, or other high-traffic volume road, where no vehicular parking is available adjacent to the outdoor dining area and must comply with AS 3845.
		C40.	Complete enclosure of an outdoor dining area is not permitted.
Planter Boxes			
O23.	Planter boxes make a positive contribution to the visual quality of the streetscape.	**C41.**	Non-permanent planter boxes must be removed at end of trading hours and stored within the premises.
		C42.	Permanent planter boxes are only permitted on a kerbside location, in accordance with Council's local centre public domain plans.
		C43.	Plants are to be properly maintained by the permit holder, make a positive contribution to the character of the streetscape, and must not obscure the vision of vehicle drivers.

6.2.2 Specialised Retail Premises (Bulky Goods)

Objective		Control	
O1.	To ensure specialised retail development positively contributes towards the streetscape.	**C1.**	Cafes and fast-food restaurants are only permissible in bulky goods tenancies with a sales area accessible to the public larger than 2,000m^2.
O2.	To establish the requirements for specialised retail premises.	**C2.**	The maximum size of a café or fast-food restaurant is 150m^2.
		C3.	Bulky goods retail developments are to be designed to: a. address and activate street frontages with large display windows; b. define and enhance the public domain and introduce setbacks consistent with surrounding development; c. be in scale with surrounding buildings; d. incorporate detail and architectural interest particularly at visually prominent building locations such as lower level front facades, roof tops and at the termination of street vistas; e. avoid ambiguously designed external spaces with poor pedestrian amenity and security; f. provide a clearly identifiable and dedicated pedestrian access to the building and across the site from the primary street frontage; g. create a visually interesting place for pedestrians, and where possible, connect the site and building to pedestrian and bike networks; and h. provide active uses that address the street and can be seen from the public domain.
		C4.	Provide high ceilings and adaptable open planning for the ground and first floors to cater for different future uses of the building.
		C5.	Depending on the surrounding context, buildings are to be sited close to the street alignment, and designed so that key operational spaces are legible from the street.
		C6.	Signage is not to cover windows or detract from the architectural quality of the building.

Objective		Control	
		C7.	Pick-up areas are to be provided to avoid the necessity for customers to carry large items to vehicles.
		C8.	Development is to provide sufficient manoeuvring areas on site to accommodate large truck and bus movements, frequency of servicing, and high turnover of customer vehicles.

6.2.3 Convenience Stores

Objective		Control	
O1.	To minimise the potential for adverse amenity that may be caused by convenience stores on the streetscape and surrounding properties.	**C1.**	Prevent adverse impacts on the streetscape and local amenity from excessive advertising signage. Limit each store to: a. one under awning sign or one horizontal projecting wall sign; b. one non-illuminated awning fascia sign with a maximum length of 3m and a height of no greater than the awning fascia; and c. one window or flush mounted wall sign with a maximum area of 1sqm and designed to fit within the architectural style of the shop front.
		C2.	Signage may be further restricted where the store is on a heritage item or within a heritage conservation area.
		C3.	Convenience store design must not: a. present the exterior of the shop as an advertising panel (in terms of corporate paint schemes and logos) b. include signage, banners, or corporate paint schemes above awning level c. include decals, opaque films, and stickers attached to shopfronts and windows.
		C4.	Shopfront windows must be clear of all obstructions to enable viewing into the shop from the public domain.
		C5.	Illumination that impacts on the streetscape and local amenity and is considered excessive for the reasonable and necessary carrying out of the business will not be permitted.

6.2.4 Vehicle Sales and Hire Premises

Objective		Control	
Vehicle Sales and Hire Premises - General			
O1.	To ensure Vehicle Sales and Hire Premises: a. promote high quality design, appearance, and function in Bayside LGA b. are compatible with the desired built form and environment in Bayside LGA c. does not adversely impact the amenity of adjoining land, in particular where zoned or used for residential uses d. ensure that use of land for vehicle sales or hire premises does not impair traffic flow or road safety	**C1.**	All parking and storing of vehicles (both for customer and rental vehicles) is to be provided on site wholly and the design of the vehicle parking and storing area must comply with AS2890.1 and/or AS2890.2.
		C2.	A Traffic and Parking Impact Assessment Report is required for vehicle sales and rental premises applications and must include the following: a. full details of the proposed operation (including maximum number of vehicles to be stored on-site and frequency of movements) b. proposed vehicular access, off-street parking/vehicle storing area, pick up/drop off zone, movements, and manoeuvrability of all vehicles c. truck routes to and from the site (for the transport of vehicles) d. details of any potential impacts on traffic and the road network system (including intersection performance analysis)
		C3.	An acoustic assessment is required to accompany all applications.
		C4.	Where possible cars are to be displayed internally, allowing for built form to be developed along the perimeter building line.
		C5.	All driveways, circulation roadways, parking and vehicle storage areas are to be sealed.
		C6.	The number of cars for sale or hire must not exceed 1 for each 30m² of the site area.
		C7.	No spray painting or panel beating at a vehicle sales and vehicle hire premises is to be carried out on site.
		C8.	The first two levels of a new vehicle sales & hire premises are to have ceilings of at least 2.7m in height and adaptable open plan design.
		C9.	A Plan of Management (POM) is required to be submitted. The Plan of Management (POM) is a written report which describes how the ongoing operation of vehicle sales and hire premises will be managed to reduce its impact upon the amenity of surrounding properties.

Objective		Control	
			The POM allows Council to exercise control over the ongoing operation of a premises by requiring, as a condition of consent, that the premises operate in accordance with the POM. A condition of consent may require that a POM be regularly revised and submitted to Council. The POM must provide all details relevant to the operation of the premises. As a minimum the following must be included: a. Title; b. Objectives; c. Operational details; d. Hours of operation; e. Staffing details; f. Guidelines for staff for using the site facilities and equipment; g. Deliveries and loading/unloading of vehicles; h. Managing customers; i. Security details; j. Trade Waste discharge; k. Complaint recording and handling process; l. The review process to continuously improve the POM.
		C10.	A landscape buffer at least 3 metres wide must be provided on the site along the common boundary.
		C11.	Except for the landscape buffer strip, all of the site not occupied by buildings must be sealed to prevent dust.
		C12.	External lights must be directed away from any nearby residential zone or use to prevent light spill or glare.
Waste Management			
O2.	To ensure there are appropriate on-site waste management procedures to collect and recover waste materials.	**C13.**	Vehicle Sales and Hire Premises are to comply with Bayside Council's Waste Management DCP Technical Specification 2019.

6.2.5 Showrooms

Objective		Control	
O1.	To ensure that showroom design contributes positively to streetscape and public domain outcomes for the Bayside LGA.	**C1.**	Design and locate showrooms to: a. be close to the street alignment; b. relate appropriately to the street and surrounding buildings;

Objective		Control	
			c. have continuous uniform setbacks with surrounding development; d. incorporate detail and architectural interest; e. avoid ambiguous external spaces with poor pedestrian amenity and security; and f. enhance public open space and public streets.
		C2.	The storage of any vehicles on site must be behind the front building line for car showrooms.
		C3.	Showrooms are to have a minimum floor to ceiling height of 4.0m and preferably higher. Along the Princes Highway, the minimum floor-to-ceiling height is to be 7m.
		C4.	Buildings are to be designed with a strong relationship to the street through glazing. Extensive blank walls are to be avoided.
		C5.	Roof space is not to be used for car parking or external retail space.
		C6.	Signage must be integrated into the overall façade design and not detract from the overall integrity of the development.
		C7.	Sun shading is to be provided appropriate to orientation for glazed portions of the facade.
		C8.	Car parking should preferably be located: • At the rear of the building away from the street frontage. • Behind the front building line. • Within a basement car parking structure.
		C9.	Any parking located within the front setback area must be suitably landscaped to add positively to the streetscape and not detract from the building's relationship with the street.
		C10.	Where a building is set back, a landscaped strip (min width 1.2m) is to be provided along front property boundary. The landscaped strip must not obscure buildings or obstruct the opportunities for passive surveillance of the buildings from the street and vice versa. The preferred planting will be ground covers and low bushes with

Objective		Control	
			larger canopy trees which allow clear sight lines at eye level.

6.2.6 Uses Involving the Preparation and Storage of Food

Objective		Control	
O1.	To ensure that uses involving the preparation and storage of food comply with the relevant standards.	**C1.**	The construction, use and operation of the premises shall comply with the provisions of the Standard 3.2.3 of the Australian New Zealand Food Standards Code, Food Act 2003 and Food Regulation 2010.
		C2.	An application shall be made to Council for registration of the food premises prior to the issuing of the occupation certificate. These forms are available from Council.
		C3.	Design of mechanical exhaust ventilation systems shall comply with the requirements of AS1668 and details are to be submitted at the Construction Certificate stage.
		C4.	A Trade Waste Agreement shall be obtained from Sydney Water in relation to the process of waste water. A copy of the Agreement is to be provided to Council prior to the issue of the Construction Certificate.
		C5.	An employee within the organisation must have completed the Food Safety Supervisor course.
		C6.	Uses likely to emit air pollutants (including odour) shall demonstrate that best practicable means of control of air pollutants (and odour) will be applied to the proposed development. The applicant shall outline the type, quantity and quality air pollutants that are likely to be emitted, the collection and treatment proposed prior to discharge and methods to be employed to minimise fugitive emissions.
		C7.	The use of shipping containers for the purposes of food storage is prohibited, unless it can be clearly demonstrated that the relevant Food Safety Guidelines are adhered to for appropriate and safe food storage and handling as required by the NSW Food Authority Guidelines and Standards.

6.3 Business and Office Premises

6.3.1 General Premises

Objective		Control	
O1.	To ensure development: a. has a layout, scale and design that is appropriate to the preferred character of the area b. provides a high quality of design c. minimises the impact of standalone office & business buildings on the surrounding area d. provides visual relief and shade to the large amounts of ground and building surfacing e. creates a pleasant "human" environment within and external to the site.	**C1.**	Building expression through façade modulation, roof silhouette and the use of a variety of contemporary materials and finishes is required to achieve buildings that are of architectural merit, innovation, variety and attractiveness.
		C2.	There is to be a balance between the solid walls and openings and between horizontal and vertical planes.
		C3.	A Schedule of Finishes is required for new buildings and any additions to existing buildings, such as additional floors.
		C4.	Buildings are to have a clearly delineated entranceway to address the main frontage.
		C5.	Buildings on corner allotments shall include an accentuated form to the corner.
		C6.	Minor modulation in the height of buildings is required to reduce visual bulk and scale.
		C7.	New buildings must consider and respond to the predominant and characteristic height of buildings within the Centre; and consider the topography and shape of the site.
		C8.	The maximum number of storeys must not exceed the maximum number of storeys identified for specific centres in **Chapter 7 Specific Places**, if applicable.
		C9.	Buildings must have a consistent street wall height and provide a continuous street frontage and awning height along the street frontage where appropriate.
		C10.	Blank walls are to be avoided adjoining principal streets and the public domain. If they are unavoidable amelioration measures such as artwork or landscaping is required to enhance the visual amenity and reduce vandalism.

6.3.2 Building Setbacks

<table>
<tr><th colspan="2">Objective</th><th colspan="2">Control</th></tr>
<tr><td>O1.</td><td>To ensure development:
a. minimises the impact on the surrounding area
b. creates a pleasant environment within and external to the site
c. achieves suitable setbacks to Alexandra Canal and the Mill Pond</td><td>C1.

C2.</td><td>Not less than 10% of the development site shall be landscaped. On sites over 2,000m² the front landscaped setbacks are additional to the 10% requirement. The majority of landscaping shall front the street/s to which the development fronts and include side and rear landscaped areas.

Street setbacks are to be in accordance with the following table, unless precinct-specific controls are outlined in Chapter 7 Specific Places or otherwise where a consistent and desirable streetscape for commercial development already exists:

<table>
<tr><th>Boundary</th><th>Landscape Setback</th><th>Building Setback</th></tr>
<tr><td>Front - Primary and Secondary Streets</td><td>3 metres</td><td>4 metres</td></tr>
<tr><td>Front (secondary street) – to a non-classified road</td><td>4 metres</td><td>9 metres</td></tr>
<tr><td>Side and Rear – To Podium</td><td>3 metres</td><td>4 metres</td></tr>
<tr><td>Side and Rear – To Tower above Podium</td><td>-</td><td>6 metres</td></tr>
</table>
Table 14: Street Setbacks

Note: Landscaping setbacks are to be free from overhangs, hard elements such as paths, ramps, substations, fire hydrant boosters, signs, parking (both above ground and underground) advertising structure (including pole signs). This quantity of landscaping may be used in calculating 10% landscaped area on site with an area below 2,000m².

Note: Awnings and verandas along classified roads should be set back a minimum of 1.5m from the kerb. Awnings and verandas along</td></tr>
</table>

Objective		Control	
			local roads that intersect with classified roads should be set back a minimum of 1.5m from the kerb for a distance of up to 100m from the intersection with the classified road. At any signalised intersections (on local roads or classified roads), awnings and verandas should be set back a minimum of 1.5m from the kerb for a distance of up to 100m from the signalised intersection.
		C3.	The following setbacks apply to commercial development along the Princes Highway specifically ("Highway Commercial"): • On primary frontages to the Princes Highway continuous uniform street setbacks are to be followed where evident. • Buildings must be at least 4.5m from the side boundary where adjoining any residential development. If adjoining business development, zero side setbacks are permissible. • Buildings must be at least 6m from the rear boundary where adjoining any residential zoned land.
		C4.	Where a site adjoins residential development appropriate rear or side setbacks must be provided to ensure that potential impacts on adjoining or surrounding residential properties are minimised in terms of loss of privacy, sunlight and daylight access and visual amenity. The appropriate setback will be determined at development application stage, subject to a detailed Site Analysis.
		C5.	Setbacks on corner blocks must enable sufficient sightlines for traffic in accordance with the relevant Australian Standard (AS2890.1).
		C6.	Setbacks are to maximise the retention of existing trees and their root systems, and may need to be variable to achieve this (includes trees on adjoining properties).

6.3.3 Public Domain

Objective		Control	
O1.	To ensure the public domain is upgraded as part of redevelopment and contributes positively to the streetscape.	**C1.**	All overhead wires (including electrical and telecommunication services) fronting the site are to be relocated underground as part of the development. The redundant power poles are to be removed and replaced with underground supplied street lighting columns. All works shall be carried out at the applicant's expense.

6.4 Industrial premises

Objective		Control	
General			
O1.	To encourage efficient design, operation, and function of industrial land uses and need for a compatible and workable relationship between industrial/ business and non-industrial/ business uses.	**C1.**	Industrial development is to comply with the following: a. site operations and equipment associated with a development are to be contained wholly within the site b. building design and site layout shall allow for an efficient and safe system for manoeuvring, loading and unloading, and parking of vehicles within the site
O2.	To improve the built form and public domain amenity for workers, and customers responding to the increasing diversity of businesses located in the industrial and business areas of Bayside.	**C2.**	Where an industrial unit complex consists of more than 10 units, the building layout must allow for visual connections through and beyond the site to assist in breaking down the visual scale of the development and provide more legible site access for visitors.
		C3.	An industrial development should be designed to locate sources of noise such as garbage collection, loading/unloading areas, air conditioning plant/other machinery, and parking areas away from adjoining residential properties.
		C4.	Local road networks within the LGA are not to be adversely affected as a result of the operations of an industrial or business use.
		C5.	Buildings are to provide basic amenities for workers and visitors including a designated staff room or area that is: a. adequately furnished for staff b. provided with attached kitchen/kitchenette with a fridge, microwave, sink and tea/coffee making facilities

Objective		Control	
		C6.	For sites in excess of 1,000m², an outdoor staff recreation area is to be provided with the following configurations: a. a minimum of 16m², with a minimum dimension of 3 metres; b. ideally located in either: i. the front building setback ii. in an upper floor balcony iii. in an enclosed courtyard iv. in any other landscaped setting on the site c. designed to include a table and chairs d. designed to allow at least 6m², to receive direct sunlight for the four hours between 10AM and 2PM during mid-winter; and e. provide shading in summer.
		C7.	If an outdoor staff recreation area is provided within the landscaped area at the front of the site, then the landscaped setback required in Part 4.3.5 of this DCP should be increased by an additional 1m.
		C8.	Lighting is to be provided at all building entry and exit points to ensure safe access. External lighting to an industrial development must consider the impact of glare on the amenity of adjoining residents.
Site Planning and Setbacks			
O3.	To ensure the site layout and setbacks minimise adverse impacts, including noise, air quality and odour impacts, on surrounding area and land uses and contribute to a pleasant environment and streetscape.	**C9.**	Floor space is to be distributed on the site to ensure the scale of the building reinforces the role of the street and buildings are arranged and aligned to create a pleasant working environment.
		C10.	The street setback of an industrial building must respond to the desired street setback and the future character statement of the street. Where the setback of adjoining buildings is inconsistent, the building should be consistent with the dominant setback found along the street.
O4.	Provide legible wayfinding within the site.	**C11.**	For sites with a road frontage to residential areas: a. buildings are to address the street, with restricted access points; and b. warehouse/factory functions as well as car parking, manoeuvring areas, loading and unloading facilities are to be located away from the residential areas.

Objective

Control

C12. Industrial development is to avoid locating loading and unloading facilities and the majority of car parking along the main frontage.

C13. Not less than 10% of the development site shall be landscaped. On sites over 2,000m² the front landscaped setbacks are additional to the 10% requirement. The majority of landscaping shall front the street/s to which the development fronts and include side and rear landscaped areas.

C14. Setbacks are to be in accordance with the following table:

Boundary	Landscape Setback	Building Setback
Front – to a non-classified road (Refer to Notes)	3 metres	9 metres (Refer to Notes)
Front – to a classified road (Refer to Notes)	4 metres	9 metres (Refer to Notes)
Side – adjoining a non-residential use/zone including lanes	2 metres	2 metres (Refer to Notes)
Side – adjoining a residential use/zone or in the Council's opinion the building impacts on the streetscape	3 metres	3 metres (Refer to Notes)
Rear – (Refer to Notes)	Nil to 3 metres	Nil to 3 metres

Table 15: Boundary Setbacks

***Note**: Greater setbacks will be required for bulky, hazardous and noise or odour generating activities.*

***Note**: Building setback relates to new building works. Underground parking is to be situated*

Objective		Control	
			underneath the building footprint. The building setback is inclusive of the landscape setback required within the above Table. ***Note**: Landscaping setbacks are to be free from overhangs, hard elements such as paths, ramps, substations, fire hydrant boosters, signs, parking (both above ground and underground) advertising structure (including pole signs). This quantity of landscaping may be used in calculating 10% landscaped area on site with an area below 2,000m².* ***Note**: Awnings and verandas along classified roads should be set back a minimum of 1.5m from the kerb. Awnings and verandas along local roads that intersect with classified roads should be set back a minimum of 1.5m from the kerb for a distance of up to 100m from the intersection with the classified road. At any signalised intersections (on local roads or classified roads), awnings and verandas should be set back a minimum of 1.5m from the kerb for a distance of up to 100m from the signalised intersection.*
		C15.	Development on a corner-lot site is to provide: a. a minimum 9m building setback to the main street/road b. a minimum 3m building setback to the secondary road/street c. enable sufficient sightlines from traffic in accordance with the relevant Australian Standard (AS2890.1)
		C16.	A minimum 3 metre side or rear building setback is required for any building abutting a residential property. This setback is to be increased by one metre for every additional metre in height for the proposed development, above 5 metres in building height.
		C17.	Where a new building or alterations and additions to an industrial building is proposed abutting a residential property the front building line setback is to complement the front building line setback of the adjoining residence.
		C18.	No buildings, structures, car parking, storage or vehicle manoeuvring areas are permitted within a minimum 10m wide area adjoining

Objective		Control	
			Alexandra Canal and 6m along the tributaries of the Canal. ***Note**: The setback is to be landscaped and planted with appropriate species, as detailed in the Alexandra Canal Masterplan. Such landscaping not to include plants with invasive root systems and that have the potential to damage the canal wall or its surrounding infrastructure can be used as a general requirement for landscapes*.
		C19.	Setbacks are to maximise the retention of existing trees and their root systems and may need to be variable to achieve this (includes trees on adjoining properties).
		C20.	No part of the main building and other structures (including basement car parks, driveways, or OSD/infiltration system) are to encroach into the setback area.
		C21.	Visitor car parking for industrial development (excluding multi-unit industrial development) may be provided at the front of buildings behind the setback required under the relevant sections of this DCP.
		C22.	For multi-unit industrial development, car parking and loading/unloading facilities are not to be located within the front setback to the street.
		C23.	Building entrances are to be clearly defined and located so that visitors can readily distinguish the public entrance to each building.
		C24.	Access to each entrance is to be provided by a safe direct route, avoiding potential conflict with vehicles manoeuvring on site.
		C25.	Development on sites south of Wentworth Avenue are required to access the site via the use of Foreshore Drive.
Building Design			
O5.	To ensure an integrated overall building appearance and achieve a high standard of contemporary design that contributes to the streetscape and surrounding area.	**C26.**	Building form is to provide visual interest through an articulated façade, such as projecting wall elements, shading devices, legible building entrances, and a variation in texture / finishes / materials.
		C27.	Building frontages should be articulated with the use of brick, stone, concrete, glass (non-reflective), and like materials, but not concrete render.

Objective		Control	
		C28.	Building design is to: a. address the street frontage b. highlight any non-industrial aspects (such as the office section) of the development c. locate administration office or showroom to the front of the building d. provide regular modulation to the façade or division of massing e. locate the front entrance to address the street frontage f. clearly define and articulate building entrances through form, materials and colour g. provide level or ramped access h. locate waiting areas and entries to lifts and stairwells to be near areas of active use and visible from building entrances i. position windows on the upper floors of a building to overlook the street j. apply variation in unit design and layouts k. introduce solid surfaces, preferably masonry, and incorporate horizontal and vertical modulation including windows in appropriate proportions and configurations l. avoid bulky roof forms or extensive blank facades in a single material or colour, particularly when visible from the public domain m. ensure above ground rainwater tanks shall not be visible from the public domain n. ensure open storage areas shall not be visible from any public place and clearly defined on plan application.
		C29.	Where blank walls on street frontages are unavoidable in new construction, they must be screened by landscaping. External finishes must be robust and to a high standard to minimise the potential for graffiti or other vandalism. An anti-graffiti coating may be required where buildings adjoin a public place or accessible from an open area that is not secured by fences.
		C30.	Building facades fronting West Botany Street or Princes Highway are to create a strong street and commercial presentation through: a. greater levels of façade articulation

Objective		Control	
			b. locating commercial uses along the street frontage.
		C31.	Rooftop or exposed structures including lift motor rooms and plant rooms, are to be integrated within the building or suitably screened. For industrial development that is adjacent to a residential area, rooftop or exposed structures are to be located away from the residential boundary.
Landscaping			
O6.	To ensure industrial developments contribute to the public domain quality and improve the appearance of buildings through high quality landscaping in order to improve Bayside's canopy cover and reduce urban heat island effect.	**C32.**	A minimum of 10% of the development site is to be landscaped. On sites over 2000m² the front landscaped setbacks are additional to the 10% requirement. The majority of landscaping shall front the street/s to which the development fronts and include side and rear landscaped areas.
O7.	To retain existing trees both inside and outside the site and provide suitably proportioned areas of well-designed landscaping on each development site.	**C33.**	Landscaping is to be designed to: a. ameliorate the bulk and scale of industrial and business park buildings b. shade and ameliorate large expanses of pavement and surfacing c. create a comfortably scaled environment for pedestrians in the public domain or from within the site d. screen utility areas and the like
		C34.	The majority of landscaping is to front the street/s to which the development fronts and include side and rear landscaped areas. The landscape strip at the street frontage must not obstruct opportunities for passive surveillance of the street. The preferred planting are ground covers and low shrubs with larger canopied trees which allow clear sightlines at eye level.
		C35.	The kerb and gutter, concrete footpath (or paved footpath) and any associated works along all street(s) frontages of a site shall be constructed and/or reconstructed at the full cost of the developer.
		C36.	Boundaries adjoining open space or a railway corridor, must be planted to improve visual amenity. The preferred planting is shrubs that grow to a minimum height of 2m.
		C37.	The setback area adjoining a residential property is to be densely landscaped with evergreen trees and shrubs, which at maturity will screen the development from the

Objective		Control	
			residence. Details of the proposed planting are to be provided on a landscape plan to be submitted with the Development Application.
		C38.	Internal green spaces are to be provided in the form of internal courtyards, signature planting, green walls or other forms where accepted by Council.
		C39.	Canopy trees are to be planted liberally throughout the development and with a contiguous, even distribution to reduce the scale and bulk of buildings, unify buildings with the landscape and open spaces, enhance the streetscape and provide shade and canopy cover over the site. Minimum tree size is 100 litre. Tree selection shall be in scale with building heights and shall be strategically located, for example, to soften the ends and corners of buildings. Canopy trees strongly influence the impacts of a development on the streetscape.
		C40.	Stormwater absorption basins are to be planted with suitable trees and native grasses in preference to lawn. Species are to be tolerant of periodic inundation and water logging and are not to reduce the storage capacity of the basin. Species are not to have invasive root systems.
		C41.	Sub-surface on-site stormwater detention devices (OSD) are not to be located within any landscaped setback or underneath areas to be landscaped or planted.
		C42.	No stormwater inlet pits, piping or OSD structure are to be located within the canopy dripline or 3 metres outward of the dripline of existing trees to be retained.
Amenity and Operation			
O8.	To ameliorate any potential adverse amenity, noise, privacy, air quality, odour, or overshadowing impacts upon any adjoining or neighbouring residential development from any proposed non-residential development.	**C43.**	Noise, air and odour emissions generated from the functions and operations of a development including associated vehicles are not to have any adverse impact on non-industrial/business uses and residential areas in the vicinity of the site.
		C44.	An Acoustic Report undertaken by a suitably qualified acoustic consultant is required for centres in/adjacent to residential zones. The report must demonstrate how the site planning and building design minimise noise impacts, and that noise levels (measured at

Objective		Control	
			any point on the boundary of the site between the centre and adjoining property over a 15-miniute period) will not exceed 5dBA above the background level. The report should include recommended noise attenuation measures.
		C45.	For any proposed development that adjoins a residential property, the hours of operation are to be restricted to between 7.00am and 6.00pm Mondays to Fridays, 7.00am to 1.00pm Saturday and no work on Sundays or public holidays.
		C46.	Noise emissions are to comply with the following noise criteria: a. Operation of all plant and equipment shall not give rise to an equivalent continuous (LAeq) sound pressure level at any point on any residential property greater than 5dB(A) above the existing background LA90 level (in the absence of the noise under consideration); b. The operation of all plant and equipment when assessed on any residential property shall not give rise to a sound pressure level that exceeds LAeq 50dB(A) day time and LAeq 30 dB(A) night time and should not be audible at a neighbouring residence; and c. The operation of all plant and equipment when assessed on any neighbouring commercial/industrial premises shall not give rise to a sound pressure level that exceeds LAeq 65dB(A) day time/night time. ***Note**: For assessment purposes, the above LAeq sound levels shall be assessed over a period of 10-15 minutes and adjusted in accordance with EPA guidelines for tonality, frequency weighting, impulsive characteristics, fluctuations, and temporal content where necessary.*
		C47.	Loading and unloading must not detract from the amenity of nearby residential areas or residential zoned land, including by noise impacts. Where loading and unloading movements are likely to affect residential areas or residential zoned land, schedules of

Objective		Control	
			vehicle movements and their routes must be provided in the Plan of Management (POM) and may be regulated through conditions of consent. ***Note**: A traffic management plan may be required to support a POM where Council identify a need for this e.g. need to resolve unsafe movements, significant amount of trips generated by development or significant manoeuvres are required on-site.*
		C48.	A Plan of Management (POM) will be provided to ensure all relevant operations of the premises are understood and their impacts appropriately managed having regard to the context of the premises and its surrounds. The POM must provide all details relevant to the operation of the premises. As a minimum the following must be included: a. Title b. Objectives c. Operational details d. Hours of operation, including hours of deliveries e. After hours or emergency contact f. Staffing details g. Guidelines for staff for using the site facilities and equipment h. Deliveries and loading/unloading i. Waste management j. Traffic movements k. Use of parking areas l. Managing customers or patrons m. Security details n. Noise Impact Assessment o. Complaint recording and handling process p. The review process to continuously improve the POM ***Note**: The POM allows Council to exercise control over the ongoing operation of a premises by requiring, as a condition of consent, that the premises operate in accordance with the POM. A condition of consent may require that a POM be regularly revised and submitted to Council.*
		C49.	Waste management and recycling processes of commercial and industrial facilities should

Objective		Control	
			be guided by the Waste Management and Recycling in Commercial and Industrial Facilities (EPA, 2012).
Change of Use			
O9. **O10.**	To enable the conversion of existing industrial and warehouse buildings to office premises where the development location is suitable and will not negatively impact on Council's ability to retain and manage industrial lands. To provide for development that is compatible with the existing streetscape and respects residential amenity.	**C50.**

Objective		Control	
		C54.	Storage areas are not permitted adjacent or adjoining residential dwellings or zones (including the B4 Mixed Use Zone).
		C55.	Open storage areas shall not compromise truck or vehicle manoeuvring and car park areas.
		C56.	Ancillary buildings and storage sheds are to be located behind setbacks and the front building line and must be consistent with the design of the primary building to provide cohesion to the appearance of the development.
		C57.	Details of proposed ancillary buildings, open storage, service areas, solid liquid waste storage and collection areas are to be provided with any development application.
		C58.	All businesses are encouraged to include in their waste contracts provision for the collection and recycling of high grade and low grade office paper, batteries, equipment containing painted circuit boards, computers, florescent tubes, and other recyclable resources. If more than 10m³ of uncompacted waste and recycling is likely to be generated per day, the central waste and recycling room is to be separated from the good receiving dock, and waste is to be collected in a compaction unit. The following information must be provided at Development Application stage for outdoor storage areas: a. size of the outdoor storage area b. maximum storage height c. types of goods, materials and equipment being stored outdoors d. details of landscaping and screening structures

6.4.1 Light industrial premises and premises within Business Parks

The controls within this Section are to be used in addition to the controls outlined in **Section 6.4** – Industrial premises.

Objective		Control	
Building Design and Site Layout			
O1.	To ensure that light industrial & business park unit development has a consistent character and built form within the estate.	**C1.**	Units are to be of a size to accommodate uses permissible within the zoning. These can be adapted over time.
		C2.	The applicant is to demonstrate that all operations, including the storage of raw materials, finished products, trade wastes and recycling bins are contained wholly within the industrial unit.
		C3.	Each building within the business park, whether it is positioned on its own site or within a multi-unit development shall have a clearly delineated entryway to increase wayfinding.
		C4.	Each building within the business park shall be designed to address the public or private road to which it presents, with the following architectural features: a. variation in horizontal plane every 10m through the use of recesses, columns or blades b. variation in parapet design or roof height every 10m c. building composition includes colour schemes with at least three different colours or three different material types d. windows and building openings have canopies or awnings with a projection of at least 0.5m
		C5.	Corner allotments shall contain buildings, which also address the corner of the site with an accentuated building form to help denote the entry to the business park.
		C6.	Large expansive buildings and walls with no architectural interest or relief will not be permitted. Architectural elements, variations to colours, textures and or materials shall be utilised in these circumstances and their bulk visually broken down by the use of variations to the placement of the vertical walls of the buildings. Minor modulations to the height of the buildings may also be employed to achieve a reduction of its visual bulk.

Objective		Control	
		C7.	The site layout is to be arranged to facilitate natural surveillance of properties within the business park from the public domain.
		C8.	Development is to avoid locating loading and unloading facilities and the majority of car parking along the main frontage and be visible from the occupants of adjacent buildings.
Setbacks and Public Domain			
O2.	To ensure that optimal utilisation of landscaping areas occurs within the estate to provide an area of high amenity.	**C9.**	Notwithstanding setback requirements in Sub-section 6.3.2 *Building Setbacks*, an alternate solution to the minimum building setback to side and rear boundaries may be considered where it can be demonstrated that the proposed setbacks: a. respond to the positioning of buildings on their rear and side boundaries b. optimise manoeuvring and landscaping areas within the estate
		C10.	A contrast of paving materials is required to be provided throughout the development i.e. unit pavers and concrete. Large expanses of bland concrete paving and use of asphalt is not permitted.
		C11.	The majority of car spaces are to be paved with interlocking unit pavers.
		C12.	Entries to Business Parks and individual buildings shall be clearly visible and well signposted for pedestrians and motorists.
		C13.	All business park entrance treatments, such as directory boards must be located on private property, with appropriate positive covenants and restriction on the title to ensure the ongoing management and maintenance of such treatments.

6.4.2 Storage premises

Objective		Control	
General			
O1.	To ensure Storage Premises are suitably designed to accommodate the requirements and safety of users of the premises and not be used for a purpose other than storage.	**C1.**	A central administration office is identifiable and directly accessible from the public domain and a range of sizes of storage units are provided on-site to accommodate user requirements.

<table>
<tr><th colspan="2">Objective</th><th colspan="2">Control</th></tr>
<tr><td></td><td></td><td>C2.</td><td>A Plan of Management must provide details about the operation of the premises, including consideration of:
a. Safety and security
b. Loading and unloading
c. Movement of items
d. Any other matters that in the opinion of council has the potential to cause amenity or safety risks</td></tr>
<tr><td></td><td></td><td>C3.</td><td>Lighting is to be provided at all building entry and exit points to ensure safe access.</td></tr>
<tr><td></td><td></td><td>C4.</td><td>On-site surveillance, such as CCTV is required to provide coverage of all areas which provide access to storage units.</td></tr>
<tr><td></td><td></td><td>C5.</td><td>Storage units are secured by perimeter fencing and provide access from the public domain via entries which require security clearance.</td></tr>
<tr><td colspan="4">Setbacks and Design</td></tr>
<tr><td>O2.</td><td>To achieve developments that enhance the amenity and streetscape of the locality.</td><td>C6.</td><td>Not less than 10% of the development site shall be landscaped. On sites over 2,000m² the front landscaped setbacks are additional to the 10% requirement. The majority of landscaping shall front the street/s to which the development fronts and include side and rear landscaped areas.</td></tr>
<tr><td></td><td></td><td>C7.</td><td>Setbacks are to be in accordance with the following table.
<table>
<tr><th>Boundary</th><th>Landscape Setback</th><th>Building Setback</th></tr>
<tr><td>Front – to a non-classified road (Refer to Notes)</td><td>3 metres</td><td>9 metres (Refer to Notes)</td></tr>
<tr><td>Front – to a classified road (Refer to Notes)</td><td>4 metres</td><td>9 metres (Refer to Notes)</td></tr>
<tr><td>Side – adjoining a non-residential use/zone including lanes</td><td>2 metres</td><td>3-4 metres (Refer to Notes)</td></tr>
<tr><td>Side – adjoining a residential use/zone or in the Council’s</td><td>3 metres</td><td>3-4 metres (Refer to Notes)</td></tr>
</table></td></tr>
</table>

Objective		Control	

opinion the building impacts on the streetscape		
Rear – (Refer to Note)	Nil to 3 metres	Nil to 3 metres

Table 16: Building Setbacks

***Note**: Building setback relates to new building works. The building setback is inclusive of the landscape setback required within the above Table.*

***Note**: Landscaping setbacks are to be free from overhangs, hard elements such as paths, ramps, substations, fire hydrant boosters, signs, parking, and advertising structures (including pole signs). This quantity of landscaping may be used in calculation 10% landscaped area on site with an area below 2,000m².*

***Note:** Awnings and verandas along classified roads should be set back a minimum of 1.5m from the kerb. Awnings and verandas along local roads that intersect with classified roads should be set back a minimum of 1.5m from the kerb for a distance of up to 100m from the intersection with the classified road. At any signalised intersections (on local roads or classified roads), awnings and verandas should be set back a minimum of 1.5m from the kerb for a distance of up to 100m from the signalised intersection.*

***Note**: setbacks and landscaping may be varied, including being reduced, in the B4 zone where such an outcome will promote the creation of a vibrant street environment.*

C7. Blank walls visible from the public domain are to be avoided. Where blank walls on street frontages are unavoidable in new construction, they must be screened by landscaping. They must be finished to a high standard and minimise the potential for graffiti or other vandalism.

C8. Each building which exceeds one storey, shall be designed to address the public or private road to which it presents, with the following architectural features:

Objective		Control	
			a. variation in horizontal plane every 10m through the use of recesses, columns or blades b. variation in parapet design or roof height every 10m c. building composition includes colour schemes with at least three different colours or three different material types d. windows and building openings have canopies or awnings which a projection of at least 0.5m e. access to natural light with inclusion of windows to corridors or general floor plate
		C9.	Rooftop or exposed structures including lift motor rooms and plant rooms, are to be integrated within the building or suitably screened.
Movement and Access			
O3.	To ensure development provides legible wayfinding within the site, can accommodate heavy vehicles, and contribute to a positive building appearance.	**C10.**	Development is to avoid locating the majority of car parking within the front setback of the main frontage.
		C11.	Car parking and loading/unloading facilities are not to be located within the front setback to the street.
		C12.	On-site manoeuvring areas can accommodate a heavy rigid vehicle moving through all areas of the site in a forward gear. This control only applies to single storey premises.
		C13.	Car parking rate for self storage premises should be determined through a survey of other self storage premises in the vicinity to determine the generation of car parking and traffic movements. This survey should be submitted with any development application for a self storage premises.

6.4.3 Waste Facilities

Objective		Control	
O1.	To ensure waste facilities are not located in an area that would increase the risk of collisions between wildlife and aircraft flying to or from Sydney Airport.	**C1.**	A proponent for a new or expanded waste facility should refer to and comply with the National Airports Safeguarding Framework Guideline C – Managing Wildlife Strike Risk.

6.5 Restricted premises and sex service premises

6.5.1 General Provisions

Objective		Control	
O1.	To ensure the location and design of the premises is suitable, fits within the character and does not adversely impact on the amenity of the surrounding area or other premises.	**C1.**	All sex services premises must be clearly identifiable through the street name and numbers placed on the front of the premises and must be clearly visible at street level to prevent inadvertent visitors to private homes or businesses in the area.
		C2.	The external design and colour of the premises must be in keeping with the character and appearance of the streetscape and not be a prominent feature in the street.
		C3.	Restricted premises and sex services premises should be located away from shopfronts and arcades or throughfares of high pedestrian use.
		C4.	All entrances and exits of restricted premises and sex service premises must be designed to facilitate privacy of staff and visitors without compromising personal safety.
		C5.	Any flashing, intermittent lighting etc used in conjunction with a restricted premises and sex services premises must not be visible from a public place.

6.5.2 Safe Operation of Sex Services Premises

Objective		Control	
O1.	To provide a high level of personal safety and security for staff, visitors, and the premises.	**C1.**	All DAs for sex services premises must comply with the requirements of the Public Health Act and the requirements of NSW Health.
O2.	To ensure the Sex Service Premises is well managed to provide a safe working environment and protects the health and welfare of staff.	**C2.**	To ensure staff are of legal age to work at a restricted premises, all staff must be over the age of 18.
		C3.	A Plan of Management must be submitted and include detail on, but not limited to: a. Staff numbers b. Security and access control c. Booking and visitor management arrangements d. Emergency evacuation procedures e. Cleaning and laundering facilities and produces f. Safe sex education protocol g. Work Health and Safety policy h. Any other associated legislative requirements
		C4.	Design internal spaces to minimise alcoves and entrapment spaces.
		C5.	Provide suitable safety and security systems, including appropriate lighting to ensure the safety of all staff and visitors as they arrive and leave the premises. At minimum, the main entrance should have an intercom and lockable gate and entrance security may also include video monitoring.
		C6.	The design of off street car parking for a sex services premises and restricted premises must ensure the safety and security of workers, clients and the general public. The design of the premises must consider the installation of security cameras in the car parking area.
		C7.	Sex services premises are to provide the following security personnel: a. a minimum of two security personnel must be on the premises at all times b. where sex services premises have more than 4 sex workers, an additional security person per 3 additional workers, or any part thereof, is required on site at all times.

6.5.3 Signage

Objective		Control	
O1.	To ensure that signage identifying the restricted premises and sex services premises is discreet.	**C1.**	There is to be only one sign, not exceeding 1.5m² in area per premises.
		C2.	In instances where the primary pedestrian access is from the rear of the site (and subject to Council's assessment as to the safety aspects) a second sign may be provided at the rear of the site, indicating only the business name and the street number or address.
		C3.	The content, illumination and shape of the sign must not interfere with the amenity of the locality. In this regard, signs are not to include suggestive or offensive material, or include colours or designs that may distract passing motorists. Signs may only be illuminated if they will not cause nuisance to any adjoining premises or interfere with the amenity of the area.
		C4.	No advertising for the premises is to be on the exterior or the surrounding area of restricted and sex services premises including spruikers, illumination, services available, contact details, and display of restricted materials.

6.6 Artisan food and drink premises

Artisan food and drink premises offer craft food and drink experiences, usually in a space attached to a larger industrial space used for production. Craft and locally produced goods support industries such as tourism and hospitality and provide local employment and are increasingly popular places for residents and visitors. Artisan Food and Drink activities range from microbreweries and distilleries to cheese makers, bakeries and charcuterie workshops, which include an expansion of services to include an 'industrial door' experience for the public to view and understand how the products are made by hosting tastings, tours, and workshops.

Objective		Control	
O1.	To support the establishment of artisan food and drink premises in appropriate locations.	**C1.**	Artisan food and drink development should look to reuse and repurpose an existing development whilst ensuring it does not compromise a developments ability to accommodate future industrial uses. Details are also required to be submitted in relation to the use and its context with any site in relation to the GFA and new areas
O2.	To ensure the design of the publicly accessible areas of the artisan food and drink premises provides a pleasant and safe environment.		

Objective		Control	
			provided, such as but not limited to loading and parking areas.
		C2.	Where new buildings or structures are proposed they must be of an industrial nature and be readily able to accommodate the industrial uses envisaged for the zoning of the premises.
		C3.	If an artisan food and drink development is proposed within the proximity of residential or other sensitive land uses, a Plan of Management and Acoustic Report will be required as part of the DA. For alcohol-related industries a Plan of Management should address the responsible serving of alcohol and how customers will not be allowed to just "drive home" afterwards.
		C4.	The retail component of the artisan food and drink premise must be ancillary to the primary activity of production or manufacturing.
		C5.	The construction, use and operation of the premises shall comply with the provisions of the Standard 3.2.3 of the Australian New Zealand Food Standards Code, Food Act 2003 and Food Regulation 2010. Details are to be provided on the plans submitted with the Development Application.
		C6.	The use of shipping containers for food storage is generally prohibited under this section, unless applicants can clearly demonstrate (in writing) that the relevant State Food Safety Guidelines are adhered to for appropriate and safe food storage and handling as required by the NSW Food Authority guidelines and standards.
		C7.	Design of mechanical exhaust ventilation systems shall comply with the requirements of AS1668 and details are to be submitted at the Construction Certificate stage.
		C8.	A Trade Waste Agreement shall be obtained from Sydney Water in relation to the process of waste water. A copy of the Agreement is to be provided to Council prior to the issue of the Construction Certificate.
		C9.	Uses likely to emit air pollutants (including odour) shall demonstrate that best

Objective		Control	
			practicable means of control of air pollutants (and odour) will be applied to the proposed development. The applicant shall outline the type, quantity and quality air pollutants that are likely to be emitted, the collection and treatment proposed prior to discharge and methods to be employed to minimise fugitive emissions. **Note**: Council may require the submission of an Odour Report to demonstrate compliance with this control.

6.7 Visitor and tourist accommodation

6.7.1 Backpackers Accommodation

Objective		Control	
Location			
O1.	To ensure backpacker accommodation is within close proximity to public transport, services and facilities.	**C1.**	Backpacker accommodation is located within proximity of a rail station or land included in a centre zone.
Design			
O2.	To ensure that the residential amenity of the surrounding properties and the locality is not impacted upon by Backpackers' Accommodation.	**C2.**	Development, including additions and alterations to existing dwellings for the purpose of backpackers' accommodation, must reflect the built form and design of the surrounding area.
		C3.	The main access point is to be located at the main street frontage of the property. Access points should be avoided at the boundaries of the property where an impact on noise or privacy could result for adjoining residences.
		C4.	Outdoor recreational areas e.g. courtyards and gardens are to be located away from bedrooms and habitable rooms of adjoining residences.
		C5.	Landscaping is to be used to soften and minimise noise impacts from courtyards, recreational areas and driveways on the surrounding area.
Operation and Management			
O3.	To ensure backpacker accommodation is used for the purposes of short-term accommodation.	**C6.**	The maximum stay permitted is three months. An Emergency Management and Evacuation Plan must be prepared.
O4.	To ensure:		

Objective		Control	
	a. the adaptive reuse/conversion of existing buildings and sites to office premises b. the adaptive reuse of existing non-residential to office premises c. the impact of the adaptive reuse good management practices are in place for shared accommodation premises to operate in a manner that does not disturb adjoining residents and landowners d. that shared accommodation adheres with the requirements for fire protection, capacity, safety and security e. that shared accommodation premises are operated and maintained in a manner that is acceptable to Council	**C7.** **C8.** **C9.**	Operators should ensure that their premises complies with the Smoke-free Environment Act 2000 which regulates smoking in enclosed public places. A Plan of Management (POM) is required to be submitted. The Plan of Management (POM) is a written report which describes how the ongoing operation of backpackers' accommodation will meet the provisions of this sub-topic. **Note:** The POM allows Council to exercise control over the ongoing operation of a premises by requiring, as a condition of consent, that the premises operate in accordance with the POM. A condition of consent may require that a POM be regularly revised and submitted to Council.
O5.	To ensure the ongoing operation of backpackers' accommodation is managed to reduce its impact on the amenity of surrounding properties.		
Sleeping Room Requirements			
O6.	To ensure backpacker accommodation provides sufficient sleeping arrangements for guests.	**C10.** **C11.** **C12.** **C13.** **C14.**	All visitor accommodation applications must show a furniture plan. Sleeping rooms providing shared or dormitory-style accommodation must not accommodate more than 8 guests. Each sleeping room must contain an operable window opening to an outdoor area for natural light and ventilation. Storage facilities must be provided within each sleeping room, to ensure the secure storage of clothing and travelling articles. The storage facilities are to be a minimum of 0.6 m cubed for each person. Premises providing for more than thirty (30) beds must provide both dormitory rooms and sole occupancy rooms, some with a double bed, others with two single beds.
Facilities			
O7.	To provide a functional and healthy development that will provide adequate	**C15.**	An internal self-catering kitchen with a separate dining room must be provided on

<table>
<tr><th colspan="2">Objective</th><th colspan="2">Control</th></tr>
<tr><td></td><td>sleeping, storage, bathroom and kitchen facilities for visitors and residents.</td><td></td><td>site. The Development Application must demonstrate that the kitchen allows for 15% of the maximum number of guests to prepare and consume meals at any one time.</td></tr>
<tr><td></td><td></td><td>C16.</td><td>An adequate cooking stove, refrigerator, bench, sink and waste storage facilities in the communal kitchen must be provided.</td></tr>
<tr><td></td><td></td><td>C17.</td><td>Cooking facilities or kitchenettes are not permitted in sleeping room.</td></tr>
<tr><td></td><td></td><td>C18.</td><td>All communal areas must include access for persons with a disability.</td></tr>
<tr><td></td><td></td><td>C19.</td><td>Communal recreation areas must be provided within the premises at the rate of 0.75m² per person (including guests and staff), or with a minimum total area of 20sqm, whichever is greater.</td></tr>
<tr><td></td><td></td><td>C20.</td><td>Internal communal recreation areas shall be internal to the building and must have a minimum total floor area of 20m² and a minimum width of 3 m, where there are less than 30 occupants.</td></tr>
<tr><td></td><td></td><td>C21.</td><td>Toilet and shower facilities are required to be provided in accordance with Table 17.

<table>
<tr><th></th><th>Wash Basin</th><th>Toilet</th><th>Bath/Shower</th></tr>
<tr><td>For Guest Use</td><td>1 per 7 guests</td><td>1 per 7 guests</td><td>1 per 7 guests</td></tr>
</table>
Table 17: Toilet and Shower Facilities</td></tr>
<tr><td></td><td></td><td>C22.</td><td>A separate communal laundry area must be provided within the building. It must provide one (1) washing machine, one (1) wash tub, and one (1) dryer or 20 m of external clothes line for every 30 beds.</td></tr>
<tr><td></td><td></td><td>C23.</td><td>One sharps container is to be located within one toilet cubicle for each gender for every level with toilet facilities. Sharp containers must be locked and constructed of stainless steel. Toilets with syringe disposal facilities must be identified. Arrangement for the collection and transport of sharps materials must be made with a licensed waste contractor. Final disposal of sharps containers must be conducted by Office of Environment</td></tr>
</table>

Objective		Control	
			and Heritage licensed contaminated waste contractors.
Noise, Privacy and Amenity			
O8.	To provide suitable acoustic amenity and privacy for guests.	**C24.**	Sources of noise, such as kitchen, communal recreational areas and parking areas, must be sited and designed to minimise the noise impact on adjoining properties.
		C25.	The use of outdoor open space areas are restricted to 10:00pm.
		C26.	The use of indoor recreation areas for backpackers accommodation is restricted to: a. 5am to 11:30 pm if there is no adjoining residential uses b. 7am to 10pm if there are adjoining residential uses
		C27.	Rooms and features that generate noise (e.g. laundry) must be located away from or sound proofed from sleeping rooms.
		C28.	Communal toilet facilities are to be provided in a separate room to the shower/ bath facilities and be entered external to the dormitory sleeping rooms.
		C29.	For new development, alterations and additions, and development which proposes to increase guest numbers, a noise assessment report prepared by an appropriately qualified acoustics consultant is to be provided. The report must: a. establish the existing background noise levels b. identify all potential noise sources from the operation of the premises and any mechanical plant and equipment c. estimate the level of potential noise emission d. establish desirable acoustics performance criteria e. recommend any mitigation measures required to achieve relevant noise criteria

6.7.2 Bed and Breakfast

Objective		Control	
General			
O1.	To ensure Bed and Breakfast Accommodation is of a scale and intensity	**C1.**	A maximum of six (6) visitors are permitted to stay at a bed and breakfast

Objective		Control	
	that is consistent with domestic residential uses.		accommodation at any one time. The total occupants staying in the house is not to exceed 12 people, which includes guests, residents, family, and friends.
O2.	To ensure Bed and Breakfast Accommodation is used for the purposes of short-term accommodation.	**C2.**	A maximum of three (3) bedrooms may be used for the purpose of the bed and breakfast accommodation.
		C3.	The maximum stay permitted is 3 months.
Design			
O3.	To ensure the Bed and Breakfast Accommodation is compatible with the character of the surrounding area.	**C4.**	Development, including additions and alterations to existing dwellings for the purpose of bed and breakfast accommodation, must reflect the built form and design of surrounding area.
O4.	To ensure legibility for the main access to the Bed and Breakfast Accommodation.	**C5.**	The main access point is to be located at the main street frontage of the property.
O5.	To ensure the Bed and Breakfast Accommodation does not have unreasonable adverse amenity impacts on surrounding uses, in particular residential uses.	**C6.**	Access points should be avoided at the boundaries of the property where an impact on noise or privacy could result for adjoining residences.
		C7.	Outdoor recreational areas e.g. courtyards and gardens are to be located away from bedrooms and habitable rooms of adjoining residences.
		C8.	Landscaping is to be used to soften and minimise noise impacts from courtyards, recreational areas and driveways on the surrounding area.
		C9.	High usage communal areas are not to be located near main living areas and bedrooms of adjoining residences.
		C10.	The design and operation of bed and breakfast accommodation must take into account possible noise impacts on adjacent properties and the surrounding area.
		C11.	Noise minimisation is to be carried out for visitor movements. Arrivals/ departures and the use of outdoor open space areas outside are restricted to the hours of 8:00am to 6:00pm.
Operation and Management			
O6.	To ensure the Bed and Breakfast Accommodation is ancillary to the main use of the premises as a Dwelling House.	**C12.**	Bed and breakfast accommodation must be permanently occupied by a resident or residents, and the accommodation must be operated by the permanent residents of the dwelling. The use is not to hire employees not permanently residing on the site.
O7.	To ensure the ongoing operation of bed and breakfast accommodation is managed		

Objective		Control	
	to reduce its impact upon the amenity of surrounding properties.	**C13.**	A Plan of Management (POM) is required to be submitted. The Plan of Management (POM) is a written report which describes how the ongoing operation of bed and breakfast accommodation will meet the provisions of this sub-topic. **Note:** The POM allows Council to exercise control over the ongoing operation of a premises by requiring, as a condition of consent, that the premises operate in accordance with the POM. A condition of consent may require that a POM be regularly revised and submitted to Council.
Sleeping Room Occupancy Requirements			
O8. **O9.**	To ensure overcrowding of bedrooms does not occur. To ensure bedrooms are of an adequate size to provide for high levels of internal residential amenity.	**C14.** **C15.**	No more than two (2) persons per guest bedroom is permitted. **Note:** Children under 5 do not need to be included in determining room size. The minimum size for a visitor's room must be suitably proportioned to accommodate the number of visitors. This will be demonstrated through a furniture plan.

6.7.3 Hotel and Motel

Objective		Control	
General			
O1. **O2.**	To ensure the Hotel or Motel Accommodation is used for genuine short-term accommodation. To ensure the ongoing operation of hotel or motel accommodation is managed to reduce its impact on the amenity of surrounding properties.	**C1.** **C2.**	The maximum stay permitted is 3 months. A Plan of Management (POM) is required to be submitted. The Plan of Management (POM) is a written report which describes how the ongoing operation of hotel or motel accommodation will meet the provisions of this sub-topic. **Note:** The POM allows Council to exercise control over the ongoing operation of a premises by requiring, as a condition of consent, that the premises operate in accordance with the POM. A condition of consent may require that a POM be regularly revised and submitted to Council.
Design			
O3.	To ensure the Hotel or Motel Accommodation does not have	**C3.**	The main access point is to be located at the main street frontage of the property. Access

Objective		Control	
	unreasonable adverse amenity impacts on surrounding uses, in particular residential uses.		points should be avoided at the boundaries of the property where an impact on noise or privacy could result for adjoining residences.
O4.	To provide adequate facilities that cater for safe, comfortable, and convenient all-weather transfers between the accommodation and means of arrival.	**C4.**	Landscaping is to be used to soften and minimise noise impacts from courtyards, recreational areas and driveways on the surrounding area.
		C5.	The design of hotel/motel accommodation is to include a Porte cochere at the front of the building to accommodate buses, taxis, and cars for drop off/pick up.
Sleeping Room Occupancy Requirements			
O5.	To ensure adequate facilities are provided within bedrooms to cater for reasonable guest requirements.	**C6.**	Individual, secure, lockable storage facilities of a minimum capacity of 0.6 cubic m per person is to be provided to allow guests to individually store baggage and travel items within the sleeping room.
Kitchen Areas			
O6.	To provide adequate storage space for cooking and related utensils.	**C7.**	Where rooms include a small kitchenette, provide adequate cupboards and shelves.

6.7.4 Serviced Apartments

Objective		Control	
General			
O1.	To ensure Serviced Apartments are used for genuine short-term accommodation.	**C1.**	The maximum period for occupation of a serviced apartment is 3 months.
O2.	To ensure an appropriate mix of serviced apartment types and sizes to provide for a broad range of persons and groups.	**C2.**	Developments of more than 20 serviced apartments must provide the following mix of apartments: **a.** studio and 1 bed apartments: 60% **maximum** **b.** 2 or more bedroom apartments: 40% **minimum** **c.** 3 bedroom apartments: 5% **minimum**
O3.	To ensure the ongoing operation of serviced apartment accommodation is managed to reduce its impact on the amenity of surrounding properties.	**C3.**	A Plan of Management (POM) is required to be submitted. The Plan of Management (POM) is a written report which describes how the ongoing operation of serviced apartment accommodation will meet the provisions of this sub-topic. **Note**: The POM allows Council to exercise control over the ongoing operation of a premises by requiring, as a condition of consent, that the premises operate in

Objective		Control	
			accordance with the POM. A condition of consent may require that a POM be regularly revised and submitted to Council.
Design			
O4.	To ensure a high level of residential amenity is provided consistent with a permanent residential use.	**C4.**	Where a development proposes serviced apartments in conjunction with a residential flat building the entire development must address the requirements of State Environmental Planning Policy No 65—Design Quality of Residential Flat Development.
O5.	To ensure the Serviced Apartments do not have unreasonable adverse amenity impacts on surrounding uses, in particular residential uses.	**C5.**	Developments are to be designed to minimise visual and acoustic privacy impacts to residential land uses within the immediate vicinity. (The immediate vicinity includes residential buildings directly adjoining the boundary of the site and buildings on the opposite side of a roadway or pedestrian/cycle link).
		C6.	The main access point is to be located at the main street frontage of the property.
		C7.	Where a development proposes serviced apartments in conjunction with residential apartments, the units to be provided as serviced apartments must not be located on the same floor as permanent residential apartments. Note: Access points apart from emergency exits should be avoided at the boundaries of the property where an amenity impact could be created to adjoining developments.

6.8 Early education and childcare facilities

State wide planning controls for early education and childcare facilities are established under Chapter 3 of State Environmental Planning Policy (Transport and Infrastructure) 2021, and the accompanying Child Care Planning Guideline.

Objective		Control	
O1.	To facilitate new childcare centres which do not unreasonably impact on the amenity of surrounding residences and provide for a safe environment for children and staff.	**C1.**	All development is to be assessed against the provisions of Chapter 3 of State Environmental Planning Policy (Transport and Infrastructure) 2021 and the NSW Child Care Planning Guideline.
		C2.	Parking is to be provided in accordance with the parking rates outlined in Chapter 3.5 of this DCP.
		C3.	Traffic calming devices in heavily trafficked routes or places where there is potential of traffic hazards are to be provided at the cost of the applicant.
		C4.	20% of the site area must be landscaped area.
		C5.	No area within an Early Childhood Education and Care Service may contain plant species that are characteristic of the following: a. plants known to be poisonous or that produce toxins b. plants with high allergen properties c. plants with thorns, spiky or prickly foliage d. any plant species that Council considers may place the health, safety or welfare of the Early Childhood Education and Care Service users at risk
		C6.	If a residential component is included: a. the residence must be occupied by either the owner/operator or a member of staff. b. private open space with a minimum 30 sqm and a minimum width of 6 m is required to be designed to provide privacy for the exclusive use of the residents of the dwelling. This area can be provided as a ground level courtyard. Ideally, this private open space should be designed so that it receives 3 hours of sunlight between the hours of 9 am and 3 p.m. in midwinter. c. The provision of one off-street parking space must be provided for exclusive use of the residents. This space may not be ‘stacked’.

Objective		Control	
			d. Separate access to the dwelling must be provided.
		C7.	On-site vehicular movements must be separated from pedestrian access by safety fencing, gates, or other means.
		C8.	Details are to be provided of all advertising structures that are proposed to be located on the site.

6.9 Places of Public Worship

6.9.1 General provisions

Objective		Control	
O1.	To ensure the design of places of public worship complements the character of the surrounding area and enhances the visual amenity of the streetscape.	**C1.**	The design of a spire, tower or similar structure is to be considered on the basis of the form / bulk, scale and height of the structure and its relationship with the surrounding character of the locality.
O2.	To ensure the development assessment process for a proposed place of public workshop is consistent and fair for all religious groups.	**C2.**	The design of places of public worship in a residential zone should not detract from the character of the residential area. Note: Refer to Section 5.2.1.1 Streetscape, Local Character and Quality of Design.
O3.	To encourage passive surveillance over publicly accessible areas.	**C3.**	Minimum building setbacks to the front, side and rear boundaries are to be landscaped, providing a dense visual buffer to adjoining developments in accordance with Section 3.7.1– Landscaping.

6.9.2 Design

Objective		Control	
O1.	To design Places of public worship to enhance the quality and visual amenity and to ensure the scale and intensity is compatible with surrounding uses and future development of the area.	**C1.**	Where a place of public worship has a dual street frontage, development must address both streets through a range of design measures, including, but not limited to: a. position of windows b. architectural features
		C2.	The entrance of a place of public worship is to be located at the front of the building.

<table>
<tr><th colspan="2">Objective</th><th colspan="2">Control</th></tr>
<tr><td>O2.</td><td>To minimise noise levels of places of public workshop that may impact nearby properties and neighbours.</td><td>C3.

C4.

C5.

C6.

Objective		Control	
			b. New development on sites that have a corner frontage is to provide a 9m minimum setback to the main street/road and a minimum 3m setback to the secondary road/street.
		C8.	Where council is of the opinion that a proposal may have an impact to solar access on adjoining residential buildings and communal open space, the applicant is to provide shadow diagrams.
		C9.	Adjoining principal areas of private open space for residential development is to receive three hours of sunlight into at least 50% of the required open space between 9:00am and 3:00pm on 21 June overshadowing at hourly intervals between 9:00am and 3:00pm for 21 June.
		C10.	Development is to avoid overshadowing upon an existing solar collector of an adjoining residential dwelling. This includes solar hot water systems, photovoltaic panels or similar structures.

6.10 Creative industries

Encouraging creative industries supports the implementation of Bayside LSPS Planning Priority 5 – "Foster healthy, creative culturally rich and socially connected communities" and facilitates opportunities for creative and artistic expression.

Creative industries are the making, production, distribution, and participation in creative and cultural activities by artists, craftspeople, residents, and visitors. Activities typically include visual and performing arts, Indigenous arts and culture, music, museums, and galleries, making and craft, food, design, film, literature, and publishing, digital and media, television, radio, and interactive software. It also includes architecture, industrial design, fashion design, graphic design, advertising, and the like.

These activities contribute to the expression of creativity, culture, customs, traditions, heritage and stories of our places and communities. They also reflect the social character and contribute to a diverse and prosperous local Bayside economy.

This section should be read with **Section 3.15 Late Night Trading** and **Section 0** for light industrial premises.

Objective		Control	
General			
O1.	To support creative industries within the Bayside LGA.	**C1.**	Buildings must be retained and reused wherever possible and practical. This may

Objective		Control	
			result in flexible spaces to accommodate varying uses.
O2.	To encourage a diversity of creative and cultural activities that provide ground floor employment generating uses, and activate streetscapes and public domain areas.	**C2.**	Development must respond to the character of the area with a bulk, scale and height that responds to the desired future character of the area and minimises impacts on residents and in industrial areas the operation of other uses.
		C3.	Development must improve pedestrian amenity by incorporating awnings, street furniture or public art in any design concept. Blending of the private and public domain at the street interface is encouraged to create a vibrant and accessible place, especially on sites where they adjoin residential areas.
		C4.	The display of creative industry products along the street frontage is encouraged.
		C5.	Hours of operation may be varied on occasion to accommodate forums or exhibition openings that may occur in the evening, provided the amenity of nearby residential properties is maintained.
		C6.	The design of work spaces must provide for an on-site common delivery/loading or service vehicle area.
		C7.	To maintain active street frontages, vehicle access points must be either: a. provided from rear lanes b. designed as narrow as possible on street frontages subject to compliance with AS2890.1 and AS2890.2

6.11 Vehicle body repair workshops and vehicle repair stations

Objective		Control	
O1.	To ensure adequate provision for employee or customer car parking and vehicle storage requirements.	**C1.**	A Traffic and Parking Impact Assessment Report is required for the use and is to include the following: a. full details of the proposed operation (including maximum number of vehicles to be stored on-site and frequency of movements); b. proposed vehicular access, off-street parking/vehicle storing area,
O2.	To minimise any environmental issues from the emission of odours, noise, material storage, overspray, and liquid spillage.		

Objective		Control	
O3.	To ensure the design and operation of vehicle repair workshops & stations does not unreasonably impact on the amenity of surrounding sites/neighbours.		pick up/drop off zone, movements and manoeuvrability of all vehicles; c. truck routes to and from the site (for the transport of vehicles); and d. details of any potential impacts on traffic and the road network system (including intersection performance analysis).
O4.	To ensure there are appropriate on-site waste management procedures to collect and recover waste materials.	**C2.**	A Plan of Management (POM) is to be submitted detailing how the ongoing operation of the premises will be managed to reduce its impact upon the amenity of surrounding properties. The POM must provide all details relevant to the operation of the premises. As a minimum the following must be included: (i) Title; (ii) Objectives; (iii) Operational details; (iv) Hours of operation; (v) Staffing details; (vi) Guidelines for staff for using the site facilities and equipments; (vii) Deliveries and loading/unloading of vehicles including tow trucks; (viii)Parking (ix) Managing customers; (x) Security details; (xi) Trade Waste discharge; (xii) Complaint recording and handling process; and (xiii) The review process to continuously improve the POM.
		C3.	All vehicle body repair workshop and/or vehicle repair station work must be confined to within the building in dedicated work bays. No work is to be carried out on cars in the car parking spaces or in the street.
		C4.	All driveways, circulation roadways, parking and vehicle storage areas are to be sealed.
		C5.	When tow vehicles operate outside normal business hours, adequate on-site facilities must be provided for the storage of any damaged vehicles. Details are to be provided with the development application.

Objective		Control	
		C6.	Vehicles, including tow trucks, must enter and leave the site in a forward direction so as not to disrupt the flow of on-street traffic.
		C7.	No vehicles waiting to be serviced, repaired, or collected can stand, or otherwise be stored, on any adjoining road.
		C8.	Details demonstrating the proposed vehicle body repair workshop or vehicle repair station has been designed to accommodate the relevant environmental management controls are required as part of a development application. The design details should reference the current Environment Protection Authority requirements and/or guidelines. **Note**: The Department of Environment and Climate Change (2008) Environmental Action for Automotive Servicing and Repairs and Department of Environment and Climate Change (2008) Environmental Action for Smash Repairers provide an overview of relevant design requirements.
		C9.	Appropriate oil spill equipment must be kept on the premises and maintained at all times.
		C10.	If mechanical servicing is to be carried out on site, the servicing is to be carried out within work bays that are bunded and graded and drained in accordance with Sydney Water Requirements.
		C11.	Any refuelling on site is to comply with WorkCover requirements and the Australian Institute of Petroleum Codes.
Storage			
		C12.	Full compliance with AS1940 - Storage and Handling of Flammable and Combustible Liquids is required.
		C13.	Storage bins for scrap body panels and motor parts must be provided and must be fully screened from public view. Documentation must demonstrate that the bins will be regularly emptied.
		C14.	Dangerous goods storage for paints and other items must be provided on site in accordance with the relevant Australian Standards.
		C15.	The storage of tyres within the premises shall be in accordance with the NSW Fire

Objective		Control	
			Brigades Guidelines for the Bulk Storage of Rubber Tyres (April 2009).
Spray Painting			
		C16.	Where spray painting is proposed at vehicle body repair workshop and/or vehicle repair station premises, spray painting booths must be provided in accordance with the relevant Australian Standards.
		C17.	Spray painting must be exhaust-ventilated with a filter system to avoid odour in any adjoining residential area. **Note**: A development application is required for any spray booth. Australian Standards AS 4114 Spray painting booths, designated spray-painting areas and paint mixing rooms provides relevant standards and controls for spray painting. Prior to the construction and installation of a spray booth, the approval of the WorkCover Authority must be obtained.
		C18.	All spray-painting booths must be designed with appropriate exhaust fan and filtration system.

6.12 Caretaker Dwellings

This section applies to caretakers dwellings, which for the purposes of this DCP are considered as a dwelling on the same site as a building, operation, or plant, and occupied by a supervisor of that building, operation or plant.

Objective		Control	
O1.	To provide for caretaker dwellings where they do not compromise the integrity of industrial or business areas by imposing unnecessarily restrictive constraints on the operation of industrial or business uses.	**C1.**	The caretakers dwelling is to be ancillary to the approved industrial or business use on the site, and will only be approved where it can be demonstrated that the existing or proposed industrial/business requires a person to reside at the site full time.
O2.	To ensure caretaker dwellings are appropriately designed to provide reasonable amenity for occupants.		**Note**: Ancillary use means any use located on the same site as a primary use, where the ancillary use is small in scale and incidental to the primary use, and serves a supportive function to the primary use.
		C2.	Only one caretakers dwelling is permitted on a lot.
		C3.	A caravan will not be permitted to be used as a caretakers dwelling.

Objective		Control	
		C4.	The caretakers dwelling is to be occupied by a person who must be employed as a caretaker, owner of the business or operator of the business located on the same site.
		C5.	If consent is granted, a restriction on the use of land shall be registered on title that ensures that the caretaker dwelling is occupied by a person who must be employed as a caretaker, owner, or operator of the approved business on the site; and that the caretaker dwelling is not to be used as an independent flat or separate domicile or available for separate letting.
		C6.	A caretakers dwelling is to have a maximum floor area of 60m² and is to contain a maximum of one bedroom, kitchen, bathroom, toilet, laundry, and living/dining area.
		C7.	The caretakers dwelling is to be provided with a private open space area of: a. 15 square metres with a minimum depth of 3 metres at ground level that is directly accessible from a living room; or b. be located entirely above the ground floor on a balcony or roof area with a minimum area of 8 square metres and a minimum dimension of 2 metres, directly accessible from a living room.
		C8.	The caretakers dwelling is to be located so that it does not suffer adverse impact from the operation of the business on site or reduce the operating capability or capacity of the adjacent businesses.
		C9.	The impacts of industrial development are to be mitigated by providing protection for the caretakers dwelling from overshadowing and overlooking, noise, vibration, light, dust and odour nuisance. These impacts can be mitigated by provision of acoustic engineering, walls, screening, physical separation, site landscaping and maintaining appropriate hours of operation.
		C10.	Access to a caretakers dwelling must be from within the premises rather than from a public area.